

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, August 24, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, August 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-02709	John Dowe vs Balvir Singh, et al.
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Motion to be Relieved as Counsel

The unopposed motion by attorney Michael V. Jehdian and the Law Offices of Michael V. Jehdian, APC, to be relieved as counsel for plaintiff John K. Dowe is GRANTED.

The Court will sign the previously lodged order. This order will be effective upon the filing of a proof of service of the signed order on Plaintiff.

22CV-03414	Josefina De Lopez vs Efrain Sanchez
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Motion to Compel Responses to Special Interrogatories, Set One, And for Monetary Sanctions in the Amount Of \$1,780.00 Against Plaintiff, Josefina Cisneros De Lopez

The motion to compel responses to Special Interrogatories, Set One, is DENIED AS MOOT. Plaintiff's counsel has represented that discovery responses have been provided, rendering the instant motion moot. This leaves the issue regarding monetary sanctions.

As the late responses resulted in Defendant filing the motion to compel responses, monetary sanctions are GRANTED. Monetary sanctions in the amount of \$275 are to be paid to Defendant within thirty (30) days of this court's order.

Motion to Compel Responses to Form Interrogatories, Set One, And for Monetary Sanctions in the Amount Of \$1,780.00 Against Plaintiff, Josefina Cisneros De Lopez

The motion to compel responses to Form Interrogatories, Set One, is DENIED AS MOOT. Plaintiff's counsel has represented that discovery responses have been provided, rendering the instant motion moot. This leaves the issue regarding monetary sanctions.

As the late responses resulted in Defendant filing the motion to compel responses, monetary sanctions are GRANTED. Monetary sanctions in the amount of \$275 are to be paid to Defendant within thirty (30) days of this court's order.

Motion to Compel Responses to Request for Production of Documents, Set One, And for Monetary Sanctions in The Amount Of \$1,780.00 Against Plaintiff, Josefina Cisneros De Lopez

The motion to compel responses to Request for Production of Documents, Set One, is DENIED AS MOOT. Plaintiff's counsel has represented that discovery responses have been provided, rendering the instant motion moot. This leaves the issue regarding monetary sanctions.

As the late responses resulted in Defendant filing the motion to compel responses, monetary sanctions are GRANTED. Monetary sanctions in the amount of \$275 are to be paid to Defendant within thirty (30) days of this court's order.

25CV-04721 Gerardo Garcia vs Silva Dairy Farms

Motion for Preliminary Approval of Class Action Settlement and Setting Final Approval Hearing.

Plaintiffs' motion for preliminary approval of the class and representative action settlement is GRANTED. The final approval hearing will be calendared on January 7, 2027, at 8:15 a.m. in Courtroom 8.

26CV-00544 Laura Gutierrez Rodriguez, et al. vs Sabino Escobedo, et al.

Demurrer to Complaint

Defendant's demurrer is OVERRULED IN PART and SUSTAINED IN PART WITH LEAVE TO AMEND.

Defendant's general demurrer to the complaint is OVERRULED.

The special demurrer to the entire complaint for defect or misjoinder of parties is OVERRULED. An analysis of Code of Civil Procedure section 389 does not show that the minor children must be named in the complaint as a necessary party.

The special demurrer to the entire complaint for uncertainty is OVERRULED. Specifically, as to the issue of whether the contract was written or oral, the complaint states it is a written lease and further attaches the written document as Exhibit A. (Complaint ¶ 11, Exhibit A.)

Defendant's demurrer to the First Cause of Action is OVERRULED.

Defendant's demurrer to the Second Cause of Action is OVERRULED.

Defendant's demurrer to the Third Cause of Action is SUSTAINED WITH LEAVE TO AMEND, on the basis of uncertainty. See Defendant's Memo, 8:3-7.

Defendant's demurrer to the Fourth Cause of Action is OVERRULED.

Defendant's demurrer to the Fifth Cause of Action is SUSTAINED WITH LEAVE TO AMEND, on the basis of uncertainty. See Defendant's Memo, 8:12-15.

Defendant's demurrer to the Sixth Cause of Action is SUSTAINED WITH LEAVE TO AMEND, on the basis of uncertainty. See Defendant's Memo, 8:16-19.

Defendant's demurrer to the Seventh Cause of Action is OVERRULED.

Plaintiff is ordered to file an amended complaint within ten (10) days of this court's order.

Motion to Strike Complaint

Defendant's motion to strike is DENIED IN PART and GRANTED IN PART WITH LEAVE TO AMEND.

The motion to strike Paragraph 72 is GRANTED WITH LEAVE TO AMEND. Plaintiff does not sufficiently allege oppression, fraud, or malice, and fails to add a prayer for punitive damages. Plaintiff further fails to indicate whether the request for punitive damages is only as to the Fifth Cause of Action or is applicable to other causes of action.

Defendant's motion to strike the Prayer at Nos. 3-7 is GRANTED WITH LEAVE TO AMEND. Here, Plaintiff fails to state with sufficient detail which causes of action apply to each prayer.

Defendant's motion to strike the Prayer at No. 8 is DENIED.

Defendant's motion to strike any remaining portion of the complaint as to any reference to punitive damages is DENIED. Defendant failed to specify the additional portions of the complaint subject to the motion to strike.

Plaintiff is ordered to file an amended complaint within ten (10) days of this court's order.

26CV-00628

Esmeralda Lopez vs Harris-Woolf California Almonds, LLC, et al.

Motion to be Relieved as Counsel

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

Counsel failed to lodge with the court a proposed order on mandatory form MC-053, as required by Rules of Court, rule 3.1362(e). Further, pursuant to Rules of Court, rule 3.1362(d), the proposed order, along with the motion and declaration, is to be served on the client and all parties that have appeared. There is nothing in the record to indicate this was done.

26CV-04228

Foster Poultry Farms, LLC vs Ruben Marquez

Order to Show Cause Re: Workplace Violence Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed August 13, 2026. A response was filed August 19, 2026, however no proof of service of the response on Petitioner has been filed.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, August 24, 2026
1:30 pm

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-01423	Maria Vera vs Moises Sanchez, et al.
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Default Prove Up Hearing

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, August 24, 2026
1:30 p.m.

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Case No.	Title / Description
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C10644347	Unifund CCR Partners vs. Simon Garcia
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Order for Appearance and Examination – Simon Garcia

Appearance required. The Court notes that no proof of service has been filed.

22CV-01296	San Tan Heights Homeowners Ass'n vs. Debbie Gavarrete
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Motion for Post Judgment Attorneys' Fees & Costs

Appearance required. Appear to address the issue of valid proof of service.

The Court is uncertain from the conflicting proofs of service whether Defendant is a resident of Arizona or California. If Defendant resides in Ajo, Arizona, there appears to be timely and effective proof of service of the notice of motion and motion and the Court is inclined to grant the unopposed motion pursuant to Code of Civil Procedure section 685.080. If, however, Defendant is a resident of Gustine, California, the Court is inclined to DROP the motion from calendar due to insufficient notice.

The Court notes that on July 29, 2026, and August 5, 2026, Plaintiff filed proofs of service indicating service of the moving papers by U.S. mail on June 9, 2026, from Mesa, Arizona to an address for Defendant in Ajo, Arizona. The Court is uncertain whether the address

in Ajo, Arizona is a valid current address for Defendant because on August 12, 2026, Plaintiff filed a different proof of service indicating service of the moving papers by mail from Mesa, Arizona to an address for Defendant in Gustine, California. A noticed motion under Code of Civil Procedure section 685.080 must be served in accordance with Code of Civil Procedure section 1005 (see Code Civ. Proc., § 1005(a)(13), Cal. Rules of Ct., rule 3.1300(a)). In this case, if Defendant currently resides in Gustine, the notice of motion and motion served by mail from a location outside California on August 12, 2026, were served less than the minimum required 16 court days plus ten calendar days when mailed from a place outside the State of California (see Code Civ. Proc., § 1005(b)).

25CV-00156 Cavalry SPV I, LLC vs. Laura Vargas

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Cavalry SPV I, LLC, for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Laura Vargas is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-01432 Keith Bradshaw vs. Latasha Perez

Order to Appear for Examination (Small Claims) – Latasha Perez

Appearance required.

26CV-01824 Wells Fargo Bank, N.A. vs. Cecilia Soto

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff Bank of America, N.A., for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Cecilia Soto is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

26CV-02080 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03096 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

Appearance required. Any opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)

26CV-03325 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03560 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-03952 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Jennifer Trimble
Courtroom 12

1159 G Street, Los Banos

Monday, August 24, 2026
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Case No.	Title / Description
26CV-04554	People vs. Forty-Two Thousand Four Hundred Seventy-Nine Dollars (\$42,479.00) U.S. Currency
Hearing: Other Trailing Criminal Case # 18CR-05987	
Appearance required.	